COOLER AGREEMENT

This COOLER AGREEMENT ("Cooler Agreement") is entered into as of _____202__ (the "Effective Date"), between:

(A) **MONSTER ENERGY LIMITED**, a company organized and existing under the laws of the Republic of Ireland, with offices at South Bank House, Barrow Street, Dublin 4, Ireland ("MEL"); and

(B) **COCA-COLA BEVERAGES SOUTH AFRICA (PTY) LTD (formerly ABI Bottling (Pty) Limited)**, a company organized and existing under the laws of South Africa with offices at 15 Axle Drive, Clayville, Midrand, Olifantsfontein, 1666 Johannesburg South Africa ("Distributor").

MEL and Distributor are sometimes referred to individually as a "Party" and collectively as the "Parties".

1. Recitals and Definitions. This Cooler Agreement is made with reference to the following recitals of essential facts:

   1.1. On May 19, 2016 Distributor and MEL entered into that certain International Distribution Agreement ("Distribution Agreement"). Unless otherwise defined in this Cooler Agreement, capitalized terms used in this Cooler Agreement shall have the meaning ascribed to such terms in the Distribution Agreement.

   1.2. Pursuant to the Distribution Agreement, Distributor and MEL agreed, *inter alia,* that Distributor shall; (a) achieve optimum, ambient and cold space, position, prominence, and visibility of the Products in all Distributor's Accounts in the Territory; and (b) cause all of its promotional and Marketing efforts and/or activities under the Distribution Agreement to be devoted solely to the Products. In accordance therewith, Distributor and MEL contemplated acquiring MEL Equipment and that each would fund fifty percent (50%) of the cost of such MEL Equipment.

   1.3. When used in this Cooler Agreement, the word "Coolers" shall mean all MEL Equipment branded with the Trademarks for use in relation to the refrigeration and display of Products pursuant to the Distribution Agreement.

   1.4. When used in this Cooler Agreement, the word "Security" shall mean any notarial bond, mortgage, charge (whether fixed or floating, legal or equitable), pledge, lien, assignment by way of security or other security interest securing any obligation of any Person or any other agreement or arrangement having a similar effect.)

   1.5. The Parties have entered into this Cooler Agreement to implement their agreement as to funding, maintenance, ownership and ultimate disposition of Coolers.

2. Purchase.

   In order to assist Distributor in fulfilling Distributor's obligation to achieve optimum, ambient and cold space, position, prominence and visibility of the Products in Distributor's Accounts, MEL has agreed to invest one hundred and ninety five million South African Rand (ZAR 195,000,000.00) (the "Purchase Price") in order to acquire twenty thousand (20,000) Coolers branded with such Trademarks as MEL, in its sole and absolute discretion, deems appropriate; provided that Distributor shall reimburse MEL for and pay to MEL fifty percent (50%) of the Purchase Price and Acquisition Costs (as defined below) on the terms and conditions set forth in this Cooler Agreement. MEL shall determine the timing, description, specifications, quality, size, price, appearance, source of supply and volume of the Coolers purchased under this Cooler Agreement. MEL may in its sole and absolute discretion terminate or suspend its performance under this Cooler Agreement in the event of a breach by Distributor of either or both of the Cooler Agreement and the Distribution Agreement or if MEL is advised that its rights and/or remedies under Section 6 of this Cooler Agreement

have been impaired. MEL shall provide to Distributor (in a form reasonably determined by MEL) a description of the Coolers acquired or to be acquired and delivered to Distributor, which shall be conclusive evidence of the Coolers acquired by MEL pursuant to this Section 2. Risk of loss in the Coolers shall pass to Distributor upon delivery of the Coolers to Distributor. Distributor shall be responsible for ensuring placement of the Coolers in locations that are visible, prominent and accessible to consumers in Distributor's Accounts and shall provide to MEL (in a form reasonably required by MEL) a complete, detailed and accurate description of the Coolers placed, including the addresses of all applicable Distributor's Accounts in which Coolers are placed and the relevant serial numbers of such Coolers, all of which information shall be updated within three (3) working days of the end of each quarter (being 31st March, 30th June, 30th September and 31st December) during the Term (as defined below) (the "Cooler Information"). Any rights, obligations and/or performance of MEL under this Agreement may be assigned and/or delegated to, and/or assumed, executed and/or performed by, an Affiliate of MEL designated by MEL in its sole and absolute discretion.

3. Cost of Coolers; Payment.

3.1 MEL shall bear all of the direct and indirect costs of acquiring the Coolers including without limitation the Purchase Price and any delivery and transportation charges, insurance and taxes attributable to the acquisition and delivery of the Coolers, all of which shall be included within the Purchase Price (the "Acquisition Costs" and together with the Purchase Price, the "Total Acquisition Costs"). MEL shall provide to Distributor (in a form reasonably determined by MEL) a description and accounting of the Coolers to be submitted to Distributor at Limbro Business Park No 5 Milkyway Avenue—Frankenwald JHB 2065 or such other means as may be agreed in writing between the Parties acting reasonably. Distributor acknowledges and agrees that it shall be liable for, and shall reimburse and pay to MEL, fifty percent (50%) of the Total Acquisition Costs (the "Distributor Acquisition Costs") specified in such accounting provided by MEL in accordance with Section 3.2 below.

3.2 Distributor shall reimburse MEL for the Distributor Acquisition Costs within thirty (30) days after the end of each semi-annual period (i.e., June 30th and December 31st) for the Total Acquisition Costs incurred and/or invoiced during such preceding semi-annual period ("Distributor Acquisition Costs Reimbursement"); provided, that the Distributor Acquisition Costs Reimbursement payable by Distributor to MEL shall be accelerated and shall immediately become due upon the breach of this Cooler Agreement by Distributor. Distributor shall reimburse MEL for any costs and expenses incurred by MEL in collecting such delinquent amounts, including, without limitation, legal fees and costs including fees of collection agencies, and interest computed at the lesser of one percent (1%) per month or part thereof from the due date(s) or the maximum legally permissible rate.

3.3 Distributor hereby acknowledges its obligations under this Cooler Agreement and absolutely, irrevocably and unconditionally guarantees that, upon demand, Distributor will promptly pay to MEL all amounts due to MEL arising from (a) Distributor's obligations set forth in this Section 3 and Section 8 below and (b) any breach of Distributor's obligations under this Cooler Agreement including without limitation under Sections 4 and 5 below.

4. Ownership.

4.1 Subject to the Parties' respective rights upon termination of the Distribution Agreement and/or this Cooler Agreement and to MEL's security interest in the Coolers set forth in Section 6 below, including without limitation any agreement or instrument executed pursuant thereto, Distributor shall retain ownership of the Coolers during the Term. Distributor shall maintain all Coolers in good operating condition, shall ensure that the Branding (as defined below) is prominently and exclusively displayed on the Coolers and shall be responsible for all repairs and maintenance and other costs related to the Coolers including without limitation insurance, taxes, licenses and license fees with respect to such Coolers.

4.2 In addition to Distributor's obligations set out in Section 6 of this Cooler Agreement, Distributor shall not at any time:

4.2.1.1 Create, or permit to subsist, any Security on or over any of the Coolers except in favor of MEL or its designee.

4.2.1.2 Sell, assign, transfer or otherwise dispose of any of Coolers, or any rights to the Coolers under this Cooler Agreement, on terms whereby such asset is or may be leased to or re-acquired or acquired by it.

4.2.1.3 Enter into any other preferential arrangement having a similar effect.

4.3 Distributor shall ensure that (a) Monster Energy® graphics, logos, decals and/or other branding prescribed by MEL is prominently and exclusively displayed on the Coolers (the "Branding"), and (b) the Branding is not altered or removed from the Coolers.

4.4 Distributor shall, at its own expense, maintain all Coolers in good operating condition and unaltered as to their use, function and parts. Distributor shall be responsible for all repairs and maintenance and other costs related to the Coolers including without limitation insurance, taxes, licenses and license fees with respect to such Coolers so as to allow for the continuous normal and good use of the Coolers. Distributor shall care for and ensure that the Coolers will be used in accordance with the user's manual and instructions.

4.5 Distributor shall insure the Coolers for all risks and for full value and shall provide that MEL is an additional insured to the extent of its contents and shall provide MEL written evidence of such insurance upon demand. Distributor shall be solely responsible for the use, damage, and risk of loss of the Coolers.

4.6 Distributor shall procure that the proprietor of each venue at which a Cooler is placed (each being a "**Retailer**") enters into an agreement (in a form acceptable to MEL) confirming that the MEL Equipment is owned by Distributor (each being a "**Master Loan Agreement**"). Distributor hereby warrants, covenants and represents that it shall enforce all obligations and rights with respect to any Retailer and Master Loan Agreement in accordance with MEL's reasonable instructions to preserve MEL's interest in the Coolers. In the event Distributor fails to do so, Distributor shall indemnify and hold harmless MEL and its Affiliates in respect of any loss, damage or cost suffered by MEL and/or its Affiliates in respect of the Coolers as a result of Distributor's failure to enforce its rights against the Retailer..

4.7 Distributor shall promptly, upon MEL's request and upon termination of this Cooler Agreement in accordance with Section 8 and/or upon termination of the Distribution Agreement, take such action and execute such document(s) as may be necessary to assign or otherwise transfer to MEL or MEL's designee any such legal right required to enable MEL to enforce the terms of any Master Loan Agreement as against any Retailer for breach and/or non-compliance by Retailer under the terms of any Master Loan Agreement.

4.8 Distributor further acknowledges and agrees that pursuant to Section 4.7 and the terms of this Cooler Agreement, MEL or MEL's designee may, at its cost, seek to intervene in any claim brought by Distributor against a Retailer in order to prosecute such claim for damage and losses in favour of MEL and/or its Affiliates

5. Use of Coolers. To the fullest extent legally permissible:

5.1 Distributor shall use the Coolers solely for the purpose of promoting, displaying, cooling, and facilitating the sale of Products in Distributor's Accounts in the Territory in accordance with the Distribution Agreement for the life of the Coolers but in no event for less than thirty-six (36) months.

5.2 It shall be a violation for (a) Products to be placed or caused to be placed by Distributor or Distributor's Accounts in Coolers branded with the trademark of an Energy Drink other than a Product, but not if branded with another beverage other than an Energy Drink and (b) Energy Drinks other than Products to be placed by Distributor in Coolers (unless otherwise approved by MEL in writing).

6. Distributor Parent Company Guarantee.

6.1 Distributor hereby warrants, covenants and represents to procure that simultaneous to Distributor's entry into this Cooler Agreement, Distributor's parent company, Coca-Cola Sabco Proprietary Limited, shall enter into a Parent Company Guarantee with MEL, in the form attached to this Cooler Agreement as Exhibit A in order to guarantee payment by Distributor of the Distributor Acquisition Costs Reimbursement at the point when each such payment by Distributor becomes due and owing to MEL and/or its Affiliates.

6.2 Upon default by Distributor under this Cooler Agreement, in addition to any and all rights MEL shall have under this Cooler Agreement or otherwise by law for a default or breach of Distributor's obligations under this Cooler Agreement, MEL shall have the rights and remedies of a secured party under the Insolvency Act 24 of 1936, as amended.

7. Term.

7.1 The term of this Cooler Agreement shall commence on the Effective Date and shall automatically terminate upon the earlier of (a) the mutual written agreement of the Parties, (b) the termination and/or expiration of the Distribution Agreement (the "Term") and (c) as otherwise provided in this Cooler Agreement. The provisions of Section 8 shall survive the termination of this Cooler Agreement.

7.2 Without affecting any other right or remedy available to it, either party may terminate this agreement with immediate effect by giving written notice to the other party if:

7.2.1 the other party commits a material breach of any term of this Cooler Agreement and (if such breach is remediable) fails to remedy that breach within a period of thirty (30) days after being notified in writing to do so; or

7.2.2 the other party (1) makes any general arrangement or assignment for the benefit of creditors, (2) becomes bankrupt, insolvent or a "debtor" as defined in 11 U.S.C. § 101, or any successor statute (unless such petition is dismissed within sixty (60) days after its original filing), (3) has appointed a trustee or receiver to take possession of substantially all of such party's assets or interest in this Agreement (unless possession is restored to such party within sixty (60) days after such taking), or (4) has substantially all of such party's assets or interest in this Agreement (unless such attachment, execution or judicial seizure is discharged within sixty (60) days after such attachment, execution or judicial seizure) attached, executed, or judicially seized.

8. Termination of the Agreement.

8.1 Upon termination of the Distribution Agreement for any reason, the Coolers shall remain *in situ* at their respective locations within Distributor's Accounts.

8.2 Within two (2) weeks of the termination of the Distribution Agreement, Distributor shall deliver to MEL, at Distributor's sole cost and expense, complete and accurate documentation reasonably sufficient in form and substance to enable MEL to identify and verify the fair market value and cost of Distributor's interest (if any) in, and the precise location of the Coolers including, without limitation, the name and address of each applicable Distributor Account at which Coolers may be located.

8.3 Within a reasonable time of MEL's receipt of the information to be provided by Distributor in accordance with Section 8.2 above or at any time if Distributor fails to provide such information, MEL and Distributor shall mutually agree on the manner of distributing in a tax effective manner all such Coolers so that each of MEL and Distributor receives an equal and equitable distribution of all right, title and interest in, and all applicable rights in, related to, or associated with, the Coolers and the placement or location of such Coolers at all Distributor's Accounts' locations or premises. If MEL and Distributor cannot mutually agree upon the manner of distributing all right, title and interest in, and all applicable rights in, related to, or associated with, the Coolers and the placement or location of such Coolers at all Distributor's Accounts' locations or premises, then Distributor shall convey and deliver to MEL all right, title and interest in, and all applicable

rights in, related to, or associated with, the Coolers and the placement or location of such Coolers at all Distributor's Accounts' locations or premises equal in value to 50% of the net book value of all such Coolers as may be identified by MEL in its sole and absolute discretion. If it is not possible for Distributor to convey and deliver to MEL Coolers where located equal in value to 50% of the net book value of all such Coolers, then Distributor shall promptly reimburse MEL for the net book value of any deficiency.

8.4 In addition to the foregoing, upon termination of the Distribution Agreement or this Cooler Agreement for any reason whatsoever, Distributor shall immediately reimburse MEL for all amounts payable by Distributor to MEL for any remaining Distributor Acquisition Costs Reimbursement pursuant to Section 3 of this Cooler Agreement.

9. Miscellaneous.

Section 25 (Governing Law), Section 26 (Arbitration), Section 39 (Controlling Language), Section 41 (Further Assurances), Section 42 (Counterparts), and Section 43 (Confidentiality) of the Distribution Agreement are hereby incorporated by reference as if fully set forth herein. This Cooler Agreement may be modified only by a contract in writing executed by the Party to this Cooler Agreement against whom enforcement of such modification is sought. With the exception of the Distribution Agreement, this Cooler Agreement supersedes all prior oral and written discussions and communications between MEL and Distributor with respect to the subject matter hereof and constitutes the Parties' sole and exclusive understanding with respect to the subject matter hereof. In the event of any conflict between this Cooler Agreement and the Distribution Agreement, the Distribution Agreement will govern and control. This Cooler Agreement will be effective upon your signing and our countersigning below.

10. Reaffirmation of the Distribution Agreement.

MEL and Distributor reaffirm their respective obligations under the Distribution Agreement and confirm that except as provided in this Cooler Agreement, there are no other agreements, modifications or waivers to the Distribution Agreement, and all of the terms and provisions of the Distribution Agreement remain in full force and effect.

****Signature page follows****

IN WITNESS WHEREOF, the Parties have caused their duly authorized representatives to execute this Cooler Agreement as of the date first above written.

MONSTER ENERGY LIMITED

By: _____

Name: Rodney Sacks

Its: Director

COCA-COLA BEVERAGES SOUTH AFRICA (PTY) LTD

By: _____

Name: Rakesh Rajbally

Its: Commercial Director

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